

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 10, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03157	Delma Peara vs Marlena Calvo
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Order of Examination

Appearance required. Proof of timely personal service of the order of examination on Defendant was filed April 28, 2026.

24CV-04537	Mandeep Dhillon vs General Motors LLC, et al.
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Motion for Attorneys' Fees, Costs, and Expenses

Plaintiff's motion for attorney's fees and costs is GRANTED IN PART.

Plaintiff's request for judicial notice is DENIED as irrelevant. The document to be noticed is from Los Angeles County and is not relevant as to rates in Merced County.

Attorney's fees are awarded in the amount of \$8,962.

Costs are DENIED WITHOUT PREJUDICE.

Plaintiff seeks to set the lodestar at \$18,140.50, exclusive of attorney's fees in the amount of \$1,750 to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion. Plaintiff also seeks a multiplier of 1.3. Plaintiff seeks costs in the amount of \$1,026.22.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) The court begins its assessment with a lodestar figure. Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

The reasonable hourly rate is the prevailing rate in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the marketplace and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

Plaintiff's counsel claims hourly rates ranging from \$500 to \$650 for attorneys; \$250 to \$270 for paralegal rates; \$150 to \$225 for case manager rates; and \$150 an hour for a discovery drafter. The Court finds the claimed hourly rates are not representative of the rates charged in the local Merced community for the same or similar work. Rather, the Court finds it reasonable to set the hourly rate for counsel at \$350 /hour, the paralegal rate at \$125 /hour, and case manager rate at \$60 /hour.

A trial court may not rubberstamp a request for attorney fees and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) After a substantial review of the entire record and the papers offered in support and opposition of Plaintiff's motion, the Court finds the time billed is excessive and finds it reasonable to reduce the hours billed. The Court finds it reasonable to reduce the total attorney time of 22.5 hours by 4.5 hours, the total paralegal time of 13.6 hours by 4 hours, and to reduce the total case manager time of 14.2 hours by 1.5 hours.

In addition, the Court finds it reasonable to reduce from 3.5 hours to 2.0 hours the claimed time to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion.

This results in a lodestar, set by the Court, of \$8,962. This represents 18 hours at \$350 /hour; 9.6 hours at \$125 /hour; 12.7 hours at \$60 /hour; with an additional 2 hours at \$350 /hour to review Defendant's opposition, draft a reply brief, and attend the hearing on this motion.

Plaintiff seeks a lodestar enhancement of 1.3. This enhancement request is DENIED. This was a straightforward lemon law action that did not raise any complex or novel issues.

Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$8,962.

Plaintiff seeks costs in the amount of \$1,026.22. Defendant objects to the request as it was not accompanied by a memorandum of costs. Plaintiff has since filed its memorandum of costs on June 3, 2026. The Court at this time DENIES without prejudice the request for costs to allow Defendant the opportunity to file a motion to tax costs, if it so chooses.

Plaintiff is awarded total attorney fees in the amount of \$8,962.00, to be paid within thirty (30) days of this Court's order.

The Court will sign the order lodged on May 13, 2026, modified to reflect the above ruling.

Order to Show Cause Re: Dismissal – Notice of Settlement

CONTINUED to July 8, 2026, at 8:15 a.m. to allow time for satisfaction of the terms of the settlement agreement. If no dismissal is filed, Plaintiff's counsel is ordered to file a declaration no later than five court days before the next hearing date, showing cause why the matter should not be dismissed by the Court and jurisdiction retained for enforcement purposes pursuant to Code of Civil Procedure section 664.6.

26CV-02791 Miguel Lopez Fernandez vs Julio Maravilla

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service of the notice of hearing and temporary orders on Respondent was filed May 29, 2026.

26CV-02819 Miguel Lopez Fernandez vs Angel Gusman

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent was filed.

23CV-04088 Sharee Maravilla-Sok, et al. vs Kone, INC., et al.

Application for Pro Hac Vice Re: Thomas W. Baker

The application for pro hac vice for Thomas W. Baker is GRANTED.

The court will sign the order lodged with the court on June 1, 2026.
